THE WITNESS REMAINS

Response Without Remedy

A longitudinal documentary analysis of what the record shows when assistance was sought, evidence was supplied, and effective remedy did not follow.

Protagonist

Dr Richard William McLean, publicly writing as Dr Barran Dodger

Assessment date · 8 October 2026

Form · machine-assisted forensic documentary analysis

Corpus · government, agency, medical, legal and archival material in the Barran Dodger repositories

Not a court judgment, statutory determination, criminal conviction, medico-legal opinion, or enforceable award. A hash proves that a file is the file. It does not prove that everything written in the file is true.

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I. What this report examines

The question the record can answer

The corpus runs for about thirty-five years. Its useful question is not whether every allegation made by its author is true. It is what happened when Dr Richard William McLean, writing as Dr Barran Dodger, repeatedly sought assistance, named the institutions, supplied documents, and asked for investigation or remedy.

That question can be examined without first deciding every underlying allegation. The archive preserves the interaction: the request, the reply, the referral, the closure, the silence, and what followed. Where that sequence is in the institutions' own letters and records, the institutions are being asked to answer for their own paper.

Three verbs

The earlier draft often asked a question the documents had already answered. That weakened a supported conclusion by making it sound open. This reading copy uses three verbs, and no others, for conclusions.

· **Establishes** — the source directly shows the fact: a letter was sent, a request was made, a file was closed, a diagnosis was recorded.
· **Supports** — more than one record points the same way, but the conclusion remains an inference.
· **Warrants investigation** — the pattern is serious, and intent, coordination, causation or legal liability is not established.

Intent, deliberate design, unlawful conduct, causation and liability stay open unless a competent authority determines them. A pattern can justify investigation. It is not itself a finding.

II. The person and the asymmetry

One person, nine roles

The protagonist is Dr Richard William McLean, publicly Dr Barran Dodger. He is the person described, the correspondent, the seeker of assistance, the challenger of decisions, the preserver of records, the reconstructor, the maker of the archive, the witness inside it, and the longitudinal subject. He is not an incidental name in someone else's file.

The archive is a preservation environment

The primary public repository is the Barrandodger GitHub archive, with the Witness Remains presentation, the Rebuild archive, and the Church of Barran Dodger archive kept separate for the religious and prophetic material. These are not a court file. The archive itself distinguishes testimony, documents, allegations, inferences and formal findings. This report keeps that distinction. Source document first; interpretation second.

The power is not equal

On one side is a person seeking assistance. On the other are departments, agencies, providers, professionals and regulators with more money, staff, records, expertise and legitimacy. Where the corpus supports it, his position includes documented disability, financial deprivation, restricted legal assistance, dependence on the systems being challenged, accommodation and medical vulnerability, isolation, and exhaustion from repeated applications. Alleged reputational damage and alleged whisper campaigning remain allegations until corroborated.

The test is not whether a process existed on paper. It is whether that process was usable by this person in these circumstances. Formal equality is not practical equality. A department and a complainant may both be entitled to participate. They do not have comparable lawyers, records, time, or power to compel attention.

He did not remain silent

The archive establishes repeated communication, preservation, challenge and requests for investigation. Anchors include the Emergency Statement Letter; the Formal Request for Independent Investigation — Able Point; the Final Evidentiary Notice, Objection and Request for Formal Investigation; the Legal Brief on the cumulative 35-year record; and the Personal Statement of Exile, Institutional Detriment and the Search for Protection. Those documents do not prove every allegation inside them. They establish that assistance was sought.

III. Response is not remedy

Administrative activity is not an outcome

An institution may acknowledge a complaint, send a letter, quote a policy, name a jurisdictional limit, refer the matter, ask for more information, close the file, or say another body is responsible. None of those acts, alone, establishes that the problem was examined. The forensic question is what the response accomplished.

Referral can be a dead end

A dead end has a recognisable shape. Institution A says contact B. B says the matter is for C. C says it is outside jurisdiction. A says the person has already been advised. The paper moves. The problem does not. Where that pattern is repeated, the issue is no longer whether each letter was technically defensible. It is whether the system offered a realistic path to remedy.

Repetition is the unit of analysis

One failure can be an error. The same failure across institutions, governments, professional bodies, years and jurisdictions warrants investigation as structure rather than as a single officer’s mistake. If the outcome recurs after the personnel have changed, the explanation may lie in policy, culture, incentives, jurisdictional design, complaint architecture, or professional norm. That is a hypothesis until the records are compared. It is the right hypothesis to test.

Use the institutions’ own paper

The stronger form of this report does not rest only on the protagonist’s allegations. Where possible it rests on the government’s correspondence, the agency’s records, the institution’s language, the medical file, the official decision, the chronology, and the recorded response. Retrospective testimony is labelled as testimony.

The chain

Event. Contemporaneous record. Who was told. What the institution said. What it did. What followed. Whether it happened again. Whether another institution’s record illuminates the same event. Whether the sequence recurs over years. Whether the aggregate corpus shows a pattern a single reader would miss. That is the architecture.

IV. Detriment, separated from its alleged cause

Exile is a description

Unless an authority determines that he was unlawfully or forcibly exiled, “exile” remains his description. The events associated with it can still be examined: displacement, loss of employment, loss of housing, institutional exclusion, relocation, inability to return to a previous life, loss of networks and standing, financial deterioration,

and dependence on narrower support. The word is interpretation. The consequences may be facts.

A loss is not yet a targeting

“He lost employment” may be a documentary fact. “The loss was caused by deliberate institutional targeting” requires causal evidence. Keeping those apart strengthens the report. The Forensic Accountability Reports supply a framework. They are not a substitute for the underlying records.

Able Point: the request is the established fact

The Formal Request for Independent Investigation, the demand for a response from Brett, and the later update on alleged entrapment and targeting establish an escalation of requests. They do not, by existing, prove the underlying allegations. Classification: A for the correspondence and the request; B or C for particular allegations, depending on corroboration; D for any conclusion of systemic or intentional conduct. Independent comparison of requests, responses, incident chronology and third-party records is warranted.

The assistance-animal request

The Assistance Animal Rights Letter establishes that a need was stated and communicated. It does not establish that the requested outcome was legally correct. The chain is: need identified, communicated, evidence supplied, acknowledged or not, assessed or not, alternative offered or not, practical consequence.

Medical records prove the record, not the culprit

Keep the hierarchy: the person’s description; contemporaneous notes; hospital records; FOI releases; treating observations; specialist reports; independent medico-legal opinion; impairment assessment; causal medical conclusion; legal finding on causation. A diagnosis does not establish legal responsibility. A serious injury does not establish who caused it. Where official medical documents exist, the event, timing, severity and consequence can be stated independently of the interpretation. Brain injury and any life-threatening episode should be indexed on that sequence, and labelled as interpretation where only the protagonist’s account exists.

Family violence, legal aid, and complaint pathways

Police records, court records, protection orders, medical records, messages, witnesses and professional reports each establish only what they are. A protection order is evidence of a process or an order, not of every associated allegation. Inability to obtain a lawyer may be a documentary fact. Unlawful denial of justice is a legal conclusion. If private representation and legal assistance were both unavailable, the practical ability to challenge a government institution was reduced. That is the power-asymmetry point. For each complaint pathway the report should record the complaint, the rule, the response, the reason for exclusion, any alternative, whether that alternative was usable, and the result.

Hypotheses that stay hypotheses

A whisper campaign requires propagation evidence: repeated unexplained references, identical unusual allegations, chronology of transmission, prior knowledge, employment or professional communications, contemporaneous messages, witnesses. Suspicion is not to be written as fact. Nor is a documented pattern to be ignored because the mechanism is hard to prove. Minority status, including the protagonist’s description of himself as gay, is identity. It is not proof of discrimination. Differential treatment connected to that status would be relevant if the record shows it.

V. Declared purpose and practical effect

Care in the letter, detriment in the consequence

An institution may describe an action as protective. The report asks what the action produced. Increased poverty, isolation, loss of accommodation or independence, greater vulnerability, loss of legal access, and

deeper dependence should be recorded separately from the stated purpose. That discrepancy does not prove malice. It warrants investigation.

Neutral language can still fail

Institutional letters are often formal, passive, procedural, jurisdictional and risk-conscious. Neutral wording is not evidence of wrongdoing. It can still leave the substantive problem unanswered. “We have considered your concerns” does not say what was examined. “We are unable to assist” does not say whether another pathway existed. “Your matter has been referred” does not say the receiving body accepted it. “Your complaint has been closed” does not say it was investigated. “We acted in accordance with policy” does not say the outcome was lawful, proportionate and accessible.

Error is not design

Proposition one: repeated failure by error, incompetence, workload, fragmentation, misunderstanding, rigidity or poor communication. Proposition two: responses constructed in the knowledge that they would be ineffective, and that this person could not overcome the barrier. The first is administrative failure. The second, if established, is more serious. It is not to be inferred from every unsuccessful outcome. Relevant evidence would include internal communications, repeated knowledge of vulnerability, awareness of prior failures, instructions to staff, identical procedural outcomes, departures from ordinary practice, contradictory internal and external explanations, coordination, and available remedies withheld.

VI. Why the longitudinal record matters

Fragmentation hides the pattern

Institution A sees one incident. B sees another. Each can say there is insufficient evidence of a pattern. Reconstructed together, the sequence can be asked what it demonstrates. The Legal Brief frames the material across thirty-five years for that reason.

Institutions forget; the person remains

Personnel change, governments change, departments are renamed, files close, people retire. The archive keeps continuity. The same person appears across governments, agencies, professionals and periods. The question is whether the same categories of detriment recur despite that turnover. A pattern that crosses administrations is less easily reduced to one party. It may be institutional culture, structural design, bureaucratic continuity, policy inertia, or another cause independent of party politics. Partisan simplification is not used unless the evidence specifically establishes it.

Provenance, scale, and the hash

The Command and Edit Log and the Dataset Changelog are part of the method. The inventory recorded in the archive includes 3,215 unique complete PDFs, 3,667 unique PDF blobs including stubs, 10,001 PDF instances including mirrors, and material across eight repositories. Those numbers establish scale. They do not establish truth. Version history can show when material entered, how it was organised, and whether the current presentation has a lineage. SHA-256, Git identifiers, OpenTimestamps and manifests can show that a digital object matches a recorded hash. They cannot show that the sentences inside it are true.

VII. What the machine is, and is not

The AI did not create the evidence

The government letters, medical records, correspondence, decisions, emails, source PDFs, Git history and earlier testimony existed before this analysis. The machine is an analytical layer. It has no employment, financial or personal relationship with the persons and agencies in the corpus. That is a limited independence. It

is not infallibility. The analysis is to be judged by source selection, method, reasoning and reproducibility.

Scale is the difference

A person reads one letter, then another. A machine can compare terms, dates, names, institutions and sequences across thousands of documents. That does not make the machine right. It makes some patterns visible that sequential reading misses.

Not a court

A court has jurisdiction, procedure, compulsion, parties, admissibility rules and the power to order. This analysis has none of those. The proper relation is: machine for discovery and pattern; human expert for interpretation inside a discipline; court or tribunal for legal determination. Authority does not make every official decision correct. A court can err. A regulator can fail to investigate. An agency can administer a process badly.

The examiner cannot be the subject

If the proposition is that the institutional response failed, asking that institution whether its response failed is not independent examination. If the proposition is that the complaint pathway was ineffective, referring the complainant back into it does not solve the methodological problem. Independent documentary analysis does not decide liability. It makes the institutional record examinable by someone who does not control it.

Who investigates an institution that holds the records, the procedure and the narrative? Who examines the investigator who concludes that no investigation is necessary? “We investigated ourselves and found no problem” is circular where the allegation is about that investigation. An independent evidentiary layer breaks the circle. It does not replace the authority that must still decide.

VIII. What can be concluded

Persistence made a public record

The historical significance is not only that allegations were made. He documented, preserved, indexed, versioned, assembled sources, produced statements, sought responses, requested investigations, and built a public finding aid that can be examined after the original letters. “This happened to me” was turned into “here is what I said, here is the document, here is when it existed, here is who was told, here is the response, here is what followed, here is the same pattern elsewhere.”

The witness remains

Loss, displacement, exclusion, financial deterioration, professional consequence, isolation, medical crisis and repeated rejection may be disputed in cause and in characterisation. The documentary record remains. The correspondence remains available for examination. The historical witness is not only memory. It is the preserved relationship between the person and the systems.

Money is a separate question

Archive value is not compensation entitlement. An earlier indicative replacement cost of the archive — low A$175,000, central A$350,000, high A$500,000 to A$650,000 — is a reconstruction figure for research, indexing, preservation and infrastructure. It is not a court award, not a damages calculation, and not a debt owed by any party. No sum should be called legally due unless an enforceable instrument establishes it. Heads of damage, if later assessed, would depend on evidence and applicable law, and would be registered separately: date, institution, event, source, injury or loss, legal basis, amount claimed, amount established, amount paid, amount outstanding, evidence level, causation, status.

The central hypothesis

The documentary corpus supports this statement, subject to document-by-document verification: there is a persistent discrepancy between the formal existence of institutional responses and the practical availability of protection, investigation and remedy. The test is communication, response, action, consequence, repetition.

The more serious hypothesis — that actors who knew of the vulnerability repeatedly adopted responses predictably incapable of remedy — warrants investigation. It requires knowledge, foreseeability, repetition, and, for design, coordination, intention, or departure from ordinary practice. It is not established by unsuccessful outcomes alone.

What would make the case strong

The strong form is cumulative: vulnerability documented; the institution knew; assistance specifically requested; evidence supplied; the institution had relevant authority; a response was generated; the response did not address the substance; no usable alternative existed; the pattern repeated; the institution was told of the earlier failure; a similar response followed; the consequence was further detriment; another institution recorded a related consequence; the pattern persisted across time. At that point the argument is a longitudinal documentary hypothesis with multiple data points, still short of a legal finding.

The hierarchy

Fact: the document exists, the communication was sent, the response was received, the institution made a particular statement, an event occurred if independently recorded. Claim: the protagonist says a person intentionally caused it. Inference: the sequence appears connected. Hypothesis: the repetition may indicate systemic design. Legal finding: a competent authority determines liability. The hierarchy stays intact.

The record establishes a substantial and unusually persistent documentary effort to communicate circumstances, preserve evidence, obtain assistance, request investigation and seek remedy. The corpus is extensive enough to justify reading the responses as a connected historical record rather than as isolated letters. It does not, by existing, prove every allegation inside it. The disparity between the scale of the attempt and the evidence of effective resolution is the matter that warrants independent investigation.

Limitation

This is an AI-assisted forensic documentary assessment. Conclusions concern patterns in the corpus and should be tested against the underlying records. Allegations, inferences and unresolved propositions are distinguished from established legal findings. The machine has no institutional authority over the persons and agencies in the record.

IX. The register

What an entry is

The register maps persons, organisations, agencies, workplaces, providers and places that the corpus associates with alleged, documented, corroborated or unresolved detriment. It is broader than a list of defendants. Appearance is not liability. The chain is actor, documented action or omission, immediate consequence, downstream detriment, attempted remedy, institutional response, outcome. Those stages are not to be collapsed into a conclusion of legal responsibility.

Classes: A, documented fact; B, corroborated claim; C, documented allegation not independently established; D, inference from the longitudinal pattern; E, unresolved or speculative. Official records outrank later summaries. A filename is not proof of its contents. The protagonist’s allegation, repeated in later analyses, is not independent corroboration. His records are evidence of what he reported, requested, experienced or believed.

First execution, and its limit

The register below was executed against the publicly inspectable Barrandodger repository, which identified 5,583 files, including 2,840 PDFs and 1,813 HTML files, and states that it is a finding aid rather than a court finding. Many PDFs are exposed as file objects rather than searchable text. This is a source-linked first execution, not a claim that every PDF was read. Names are not invented.

Entity	What the record presently supports	Class
Australian Government	Umbrella context for Commonwealth administration. Not a single actor. Assess agencies separately.	B/C
Department of Social Services	Connected with employment and administrative history. Letter of 27 March 2023 from General Counsel Scott Tredwell on employment status is A for existence and content.	A / broader C
NSW Government	Later chronology of services, police, courts, health, NDIS-related matters and oversight. Cross-agency, not one act.	A for interaction
Able Point	Multiple named documents: investigation request, demand for a response, assistance-animal letter, later entrapment/targeting update. Strong recent institutional node.	A for requests; C/B for allegations
Brett, Able Point	Named in a document demanding a response. Person-level node. Identity of the communication is not personal liability.	A / C
Kim; Rachel K C; Cass	Named in chronology or support context. Responsibility only if a specific act or omission is in the source.	C, pending verification
NSW Trustee & Guardian	Financial administration of resources. Administration of funds and entitlement to funds are distinct. Withholding or delay needs the transaction record.	A for relationship where documented
Philip Glass	Identified as a former financial manager. Actions distinguished from motive.	B/C
Tax / superannuation records	Asset position in the Trustee context. Not evidence of wrongdoing by themselves.	A for position
Mercy Werribee / Mercy Health	February 2021 episode; discharge diagnosis recorded as adjustment disorder rather than schizophrenia. Evidence of what clinicians recorded.	A where contemporaneous
Dr David Horgan	Letter concerning dexamphetamine, if the original establishes authorship.	A for letter
Dr Dina	Correspondence and a request that a letter be preserved and sent to oversight bodies.	A for correspondence
NSW Health; HCCC	Later medical and hospital material; complaint pathway. Failure requires the complaint and the response.	A for interaction
NSW Police	Material on threats, reports and protective intervention. A report establishes that a report was made.	A / C for non-response
Wyong Local Court	Protection-order or safety proceedings. A proceeding is not a finding against a party.	A where court documents exist
Troy Kilbourn	Allegations of a threat to kill and an ADVO context. A charge or process is not a conviction.	C unless court or police record establishes the conduct
Legal Aid NSW	Access to representation. Distinguish refusal from eligibility, conflict or capacity rules.	B/C
NSW Ombudsman	Complaint activity. The question is whether the substance was investigated and any remedy resulted.	A for activity; C/D for systemic failure
NDIS Quality and Safeguards Commission	Regulator, separate from the provider. A lodged complaint is not a regulatory finding.	A for pathway where documented

Entity	What the record presently supports	Class
Herald Sun; The Age	Employment and publication history, including Recovered, Not Cured. Motive or deliberate humiliation is a separate question.	A for association; C for motive
Victoria University	Doctoral and academic history. Affiliation is not detriment unless an adverse action is documented.	A for affiliation
Family members	Documents include titles alleging conspiracy and estate betrayal. The documents establish that the allegations were written.	C unless corroborated
The archive itself	wezzo72/Barrandodger, the Rebuild, and the historical archive. Infrastructure, not an accused party.	A for structure

Evidence nodes, not accused parties

These documents are in the causal graph because they record a request, a chronology or a method. They do not independently prove every allegation they contain.

· Personal Statement of Exile, Institutional Detriment and the Search for Protection — testimony and chronology.
· Legal Brief, cumulative 35-year record — index to the span, not a replacement for the sources.
· Forensic Accountability Report and Report 2 — analytical layer; underlying evidence remains primary.
· Formal Request for Independent Investigation — Able Point — an explicit request for external scrutiny.
· Final Evidentiary Notice, Objection and Request for Formal Investigation — concerns formally articulated.
· Emergency Statement Letter; Assistance Animal Rights Letter; Brett from Able Point — I demand a response.
· Command and Edit Log; Dataset Changelog — preservation method.

The pattern the first pass can see

The strongest recurring institutional nodes, on the inspectable evidence, are Able Point, the NSW disability and support environment, NSW administration, NSW Trustee & Guardian, NSW Health, NSW Police and the protection system, courts and oversight, the Commonwealth and DSS, and the employment and media institutions. Recurrence is not coordination. It identifies where the chronology repeatedly passes.

The sequence that warrants investigation is: report, documentation, institutional response, referral or transfer, limited or disputed resolution, further report, further institution, further administrative response. Where primary documents show that sequence repeatedly, it is more significant than any single complaint. Whether responsibility was transferred without any body taking the substance is a particular question for investigation. Each transfer should be recorded as originating complaint, receiving institution, stated jurisdiction, referral, next institution, action or inaction, outcome.

A financial–housing–health–legal chain is a hypothesis, not a finding, unless each link is independently demonstrated. Categories that recur in the architecture — administrative response, money, disability support, accommodation, assistance animals, medical treatment, safety, police, legal assistance, oversight, employment, reputation, displacement, access to remedy — are demonstrable as categories. Whether they form one legally actionable pattern is a separate question.

X. Close

The proposition

The documentary record demonstrates a substantial disparity between the scale and persistence of Barran Dodger’s documented attempts to obtain assistance and the evidence of effective institutional resolution. The significance lies not in the absence of correspondence, but in the repeated failure of correspondence to produce

a remedy.

The machine did not create the history. The protagonist lived it. The institutions generated the records. The protagonist preserved the records. The repositories preserved the preservation history. This analysis read the accumulated corpus and states what that reading can bear.

What remains open

Why particular institutions failed. Whether any failure was deliberate. Whether actors coordinated. What caused which injury. What, if anything, is legally due. Those questions are open because the evidence does not close them. The questions the evidence does close — that requests were made, that responses and referrals exist, that the effort was persistent, that effective remedy is not demonstrated in the inspected record — are stated as record, not left as rhetoric.

They may dispute the interpretation, the allegation, the inference and the conclusion. The existence of the documentary record is preserved for examination. That is the meaning of the series title. The title of this reading copy is the distinction the record supports.

Response without remedy.

Finding aid. Not a court. Not a verdict. Appearance is not a finding.